



Notification Waiver Determination

MedHealth – Integrity Medico-Legal

Acquisition	MedHealth Pty Limited (MedHealth) applied for a notification waiver in respect of its proposed acquisition of the business and assets of Integrity Medico-Legal Pty Ltd (Integrity Medico-Legal), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	6 October 2026

Parties to the Acquisition	The acquirer, MedHealth, is an Australian subsidiary of the US-based ExamWorks Group, which provides health and injury claim services and related services. The target, Integrity Medico-Legal, is an Australian company providing independent medical assessments, medico-legal assessments, reports, advice and related services. Integrity Medico-Legal operates from a single premise at 11 Abbotsford Road, Bowen Hills QLD 4006 and provides services nationally, including via telehealth, with the majority of its revenue generated in Queensland and smaller proportions generated in Tasmania and the ACT. Both MedHealth and Integrity Medico-Legal supply claim services related to health and injury, principally medico-legal assessments and independent medical assessments. MedHealth also supplies claims management and rehabilitation and return to work services among other things.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the Act. The ACCC is unable to reach a view that the Acquisition would not be likely to raise competition issues in any market based on the information provided, given: - there is a horizontal overlap between MedHealth and Integrity Medico-Legal in the supply of claim services related to health and injury in Australia, including medico-legal assessments and independent medical assessments - the scope of the relevant markets is unclear and the extent to which the merged entity is likely to be constrained by alternative suppliers is uncertain

	c. while the increment in MedHealth’s share of supply of claim services related to health and injury arising from the Acquisition is expected to be low, it may not accurately reflect the potential competition effects of the Acquisition given the uncertainty about market definition and industry dynamics d. MedHealth appears to be active across various segments in the medical services industry and there is insufficient information to determine that the Acquisition would not be likely to raise material vertical or conglomerate competition issues. The ACCC considers that these potential competition issues would be more appropriately considered through the notification process, including via consultation with third parties. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. Considering the information provided by the parties, the ACCC considers that there is a low likelihood of the Acquisition meeting the thresholds for notification. However, as the ACCC has been unable to reach a view that the Acquisition would not be likely to raise competition issues, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act